

Smt.Buti & Ors vs Santosh & Ors on 28 November, 2016

Author: Sanjay Yadav

Bench: Sanjay Yadav

HIGH COURT OF MADHYA PRADESH : JABALPUR

BEFORE HON'BLE SHRI JUSTICE SANJAY YADAV

Second Appeal No.257/2004

Smt. Buti and other
versus
Santosh and others

Shri Aditya Adhikari, learned Senior Counsel with Shri
Abhishek Gulati, learned counsel for the appellants.

None for the respondents.

JUDGMENT

(1.12.2016) This second appeal at the instance of defendants, is directed against judgment and decree dated 24.12.2003 passed in Regular Civil Appeal No.3-A/2001 by the First Additional District Judge, Sidhi, confirming the judgment and decree dated 10.5.2001 passed in Civil Suit No.16-A/1996 by the First Civil Judge Class I, Sidhi.

2. Parties are referred to as they were before the trial Court.

3. Plaintiffs brought an action for declaration of 19/24 th share and partition and for a claim under Sections 6 and 34 of the Specific Relief Act, 1963 with regard to suit property situated at Village Parsidhi, comprising 99 numbers of a total :: 2 ::

area of 9.19 acres, 29 trees and ancestral house over Khasra No.142, on the contention that the original owner of suit property was Suryadeen. On his death, the property passed to Chudamani, who had two wives viz. Lakhni and Buti. The

marriage with Buti was after coming into force of the Hindu Marriage Act, 1955 (for short "1955 Act"). Whereas, the plaintiffs were born of Lakhni and the defendants No.2 to 4 from Buti. Chudamani was Karta Khandan and the plaintiffs were coparceners with Chudamani in the suit property. Chudamani expired in June, 1993. It was claimed in the plaint that since the marriage of Buti, defendant No.1, was allegedly after coming into force of 1955 Act and was during the lifetime of the first marriage, was void in the terms of clause

(i) of Section 5 of 1955 Act. That, after the death of Karta Khandan, the defendants stealthy got their names mutated in the revenue records which were mutated vide order-dated 29.8.1993.

4. The case of the plaintiffs was that they are governed by Banaras School of Mitakshara Law and have $\frac{1}{3}$ rd share each and remaining $\frac{1}{3}$ rd would be of Chudamani and have $\frac{1}{3}$ rd share in the share of Chudamani. The defendants at most will :: 3 ::

have $\frac{1}{24}$ share in the share of Chudamani being illegitimate children of Chudamani. The defendants contested the case claiming $\frac{1}{8}$ th share each in the property after the death of Chudamani.

5. Trial Court framed following issues :

1- D;k xzke ifjfl/kh rglhy flgkoy ftyk fl/kh fLFkr oknxzkLr Hkwfe ,oa lEifRr ftldk fooj.k okn i= dh dafMdk 2 esa vafdr gS] ds 19@24 ds fof/kd fgLLsnkj oknhx.k gS \ 2- D;k lgk;d canksLr vf/kdkjh lh/kh ny dz- 5 }kjk 29&8&93 dks ikfjr vkns'k oknhx.k ds fgrksa ds fo:) izHkko'kwU; gS \ 3- lgk;rk ,oa O;; \

6. The trial Court answered the issue in favour of plaintiffs on the finding that defendant No.1's marriage with Chudamani being void as the same was during subsistence of first marriage, held the defendants No.2 to 6 as illegitimate having share only in the share of Chudamani and not as a member of coparcener. As per Section 8 of the Hindu Succession Act, the plaintiff being Class I heirs, had $\frac{1}{3}$ rd share each in the coparcener's property. And, out of $\frac{1}{3}$ rd share of Chudamani, his widow Lakhni and the plaintiffs had $\frac{1}{24}$ share (i.e. $\frac{1}{3}$ each and $\frac{1}{8}$ th). After death of Lakhni, her entire share $\frac{1}{24}$ to the plaintiffs. Plaintiffs were thus held entitled for $\frac{2}{3} + \frac{3}{24} :: 4 ::$

= $\frac{19}{24}$ share in the entire property. The First Appellate Court affirmed the finding vide its judgment and decree dated 24.12.2003.

7. This second appeal was admitted on the following substantial question of law :-

(1) Whether the share apportioned by two Courts below are in consonance to Section 16 of the Hindu Succession Act, 1956 ?

(2) Whether the learned two Courts below while apportioning the shares have not taken into mind the provisions of Section 16 of Hindu Marriage Act, 1955 ?

8. The precise substantial question of law which arises for consideration in the given facts of present case is :

"Whether illegitimate children, defendants No.2 to 6, are entitled to a share in the coparcenary property or whether their share is limited only to the self-acquired property of their parents under Section 16(3) of the Hindu Marriage Act, 1955 ?"

9. The above issue came up for consideration before the Supreme Court in *Jinia Keotin vs Kumar Sitaram Manjhi* (2003) 1 SCC 730 wherein it has been held : -

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5. ... In the light of such an express mandate of the legislature itself, there is no room for according upon such children who but for Section 16 would have been branded as illegitimate any further rights than envisaged therein by resorting to any presumptive or inferential process of reasoning, having recourse to the mere object or purpose of enacting Section 16 of the Act. Any attempt to do so would amount to doing not only violence to the provision specifically engrafted in Sub-section (3) of Section 16 of the Act but also would attempt to court re-legislating on the subject under the guise of interpretation, against even the will expressed in the enactment itself. .."

10. In *Neelamma vs Sarojamma* (2006) 9 SCC 612, the view in *Jinia Keotin* (supra) was followed. In *Bharatha Matha vs R. Vijaya Renganathan* (2010) 11 SCC 483 also, the view in *Jinia Keotin* (supra) has been affirmed by the Supreme Court. It has been held :

29. Thus, it is evident that in such a fact-

situation, a child born of void or voidable marriage is not entitled to claim inheritance in ancestral coparcenary property but is entitled only to claim share in self acquired properties, if any.

30. In the instant case, respondents had not pleaded at any stage that the Suit land was a self acquired property of Muthu Reddiar. It is evident from the record that Muthu Reddiar did not partition his joint family properties and died issueless and intestate in 1974. Therefore, the question of inheritance of coparcenary property by the illegitimate children, who were born out of the live-in-relationship, could not arise. Thus, the judgment of the High Court is liable to be set aside only on this sole ground.

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11. However, of late, a doubt has been raised on the construction of sub-section (3) of Section 16 of 1955 Act in the case of *Revanasiddappa vs Mallikarjun* (2011) 11 SCC 1

construing that a narrow construction has been given in Jinia Keotin (supra), it has been observed by their Lordships : -

39. We are constrained to differ from the interpretation of Section 16(3) rendered by this Court in Jinia Keotin (supra) and, thereafter, in Neelamma (supra) and Bharatha Matha (supra) in view of the constitutional values enshrined in the preamble of our Constitution which focuses on the concept of equality of status and opportunity and also on individual dignity. The Court has to remember that relationship between the parents may not be sanctioned by law but the birth of a child in such relationship has to be viewed independently of the relationship of the parents. A child born in such relationship is innocent and is entitled to all the rights which are given to other children born in valid marriage. This is the crux of the amendment in Section 16(3). However, some limitation on the property rights of such children is still there in the sense their right is confined to the property of their parents. Such rights cannot be further restricted in view of the pre-existing common law view discussed above.

...

45. In the instant case, Section 16(3) as amended, does not impose any restriction on the property right of such children except limiting it to the property of their parents. Therefore, such children will have a right to whatever becomes the property of their parents whether self acquired or ancestral.

46. For the reasons discussed above, we are :: 7 ::

constrained to take a view different from the one taken by this Court in Jinia Keotin (supra), Neelamma (supra) and Bharatha Matha (supra) on Section 16(3) of the Act.

47. We are, therefore, of the opinion that the matter should be reconsidered by a larger Bench and for that purpose the records of the case be placed before the Hon'ble the Chief Justice of India for constitution of a larger Bench.

12. However, as on date, the law laid down in Jinia Keotin (supra), followed in Neelamma and Bharatha Matha (supra) prevails, this Court is bound by the same, as it is not shown that the view expressed therein has been reversed by a larger Bench.

13. The decision rendered by the trial Court and affirmed by the Appellate Court of holding defendants No.2 to 6 entitled for share only in the self acquired property of Chudamani i.e. 1/3rd share and have no right to share in the coparcenary property, when adjudged on the anvil of the law laid down in Jinia Keotin (supra), the substantial question is answered in favour of the plaintiffs.

14. Consequently, appeal fails and is dismissed. Parties to bear their own costs.

(SANJAY YADAV) JUDGE 1.12.2016 vinod